

25STCV26747 25STCV26747

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-09-11

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Case Number: 25STCV26747 Hearing Date: September 11, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

SPENCER H KIM,

Plaintiff,

vs.

FCA US, LLC, et al.,

Defendants.

Case No.:

25STCV26747

Hearing Date:

September 11, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS' DEMURRER

TO PLAINTIFF'S FIRST AMENDED COMPLAINT;

DEFENDANTS'

MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT

Background

On September 11, 2025, Plaintiff Spencer H Kim ("Plaintiff") filed this lemon law action against Defendants FCA US, LLC, and Puente Hills Chrysler Dodge Ram (jointly, "Defendants"), alleging six causes of action. On April 7, 2026, Plaintiff filed the operative First Amended Complaint ("FAC"), alleging six causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, (5) negligent repair, and (6) fraudulent inducement - concealment.

Defendants now demur to the FAC in its entirety and move to strike Plaintiff's request for punitive damages. Plaintiff opposes. Defendants replied.

Discussion

As an initial matter, Defendants' counsel submits a declaration in support of both the demurrer and motion to strike, which appear to convey the same information.

Defendants' counsel's declaration indicates, inter alia,

that "[o]n April 9, 2026, I sent a meet and confer letter to Plaintiff's

counsel. A true and correct copy of my letter to Plaintiff's counsel is

attached hereto as Exhibit A." (Coughlin Decl., ¶ 2.) Defendants' counsel then attests that "[o]ur office attempted to

meet and confer with Plaintiff's counsel telephonically regarding the pleading

issues pertinent to this motion but was unsuccessful reaching and speaking with

Plaintiff's counsel over the phone." (Coughlin Decl., ¶ 3.) Defendants' counsel further attests that "[d]espite reasonable effort by the parties, we were unable to informally resolve the pleading

issues, thus necessitating the instant motion." (Coughlin

Decl., ¶ 4.)

Defendants' counsel

attaches the email he sent, which states, inter alia, “[I]et’s discuss this over the telephone.” (Roth Decl., Ex. A.)

The Court notes that Defendants’ counsel’s declaration does not demonstrate that the parties met and conferred by telephone or in person. Although Defendants’ counsel’s email mentioned that speaking over the phone was “unsuccessful,” this does not indicate that Defendants’ counsel attempted to call Plaintiff’s counsel. Moreover, it appears that counsel did not attach Exhibit A to the declarations, so the Court cannot ascertain what the email stated.

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Emphasis added.) In addition, “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a) [emphasis added].) Such meeting and conferring must be done in good faith with an effort to try to resolve the issues subject to the demurrer.

In light of the foregoing, the hearing on Defendants’ demurrer and motion to strike is continued to _____, 2026 at 2:00 p.m. in Dept. 508. The Case Management Conference is continued to the same date, time and location.

Defendants are ordered to meet and confer with Plaintiff within 10 days of the date of this Order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Defendants are to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) and Code of Civil Procedure section

435.5, subdivision (a)(3) within 15 days

of this Order. If a timely declaration is not filed, the Court will assume that the parties resolved the underlying issues and the demurrer and motion to strike will go off calendar.

Defendants are ordered to give notice of this Order.

DATED: September
11, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court